

25SMCV04930 25SMCV04930

County: los-angeles

Division: Civil Law and Motion

Department: I

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This is the continuation of a prior hearing. Fox Sports seeks to compel responses to interrogatories and requests for the production of documents. Fox contends that it has nothing to do with the accident that is at the heart of the controversy, but that is neither here nor there for purposes of the motion.

Fox served discovery and got no response. When defense counsel reached out to plaintiff's counsel, there was still no response. Plaintiff's counsel now states that plaintiff is not mentally competent to verify the responses, and that is why verified responses have not been forthcoming. The court asked the parties to meet and confer over this. Defendant seeks a total of \$720 in sanctions and plaintiff opposes that.

The problem is this.

Plaintiff has a darn good reason for not providing verified responses assuming that a Guardian ad Litem must be appointed because plaintiff cannot verify the responses. But there is no excuse for plaintiff (or counsel) not letting defendant know about that problem until after the motion was filed or seeking the appointment of a GAL until after the motion was filed. Plaintiff's counsel's election not to meet and confer or request more time to deal with this issue is what led to the motion being filed. So while there is a justification for the lack of verification, there is no justification for plaintiff not informing defendant of that even after defendant attempted to meet and confer.

Therefore, the court agrees that the motion is MOOT on the merits but will impose sanctions of \$720 on plaintiff for the election to force defendant to file the motion when plaintiff and counsel did (or should have) known of the problem and not being willing to meet and confer on the subject. Plaintiff's counsel suggests that this is a hardship on plaintiff. That may be, but there is still no

justification for plaintiff's counsel's failure to inform Fox of the issue
thereby forcing Fox to file the motion.